

**BEFORE THE
FEDERAL MARITIME COMMISSION**

TOYOTA DE PUERTO RICO CORP.,

Complainant,

v.

**PUERTO RICO PORTS AUTHORITY,
CROWLEY PUERTO RICO SERVICES
INC., and OCEANIC GENERAL AGENCY
INC.,**

Respondent.

Docket No. 19-02

**SECTION 11 OF THE SHIPPING
ACT OF 1984**

MOTION FOR A BRIEF EXTENSION OF TIME TO FILE OPPOSITION BRIEF
(Re: PRPA's Response to Toyota's Brief in compliance with Order)

**TO MS. RACHEL E. DICKON
SECRETARY, FEDERAL MARITIME COMMISSION**

COMES NOW respondent **Puerto Rico Ports Authority** (hereinafter the "PRPA"), through its undersigned counsel, and respectfully states and requests as follows:

1. On November 13, 2020, Hon. Erin M. Wirth, issued an "Order Lifting Stay and Requiring Briefing." Pursuant to said Order PRPA was instructed to file a Brief in response to Toyota de Puerto Rico Corp.'s ("Toyota") brief by this Friday, January 15, 2021.

2. That said, pursuant to Federal Maritime Commission ("FMA") Rules of Practice and Procedure 69 and 102 (46 C.F.R. §§ 502.69 and 502.102), PRPA very respectfully requests **a three (3) day extension of time** to file its Brief to "Toyota's Brief in Compliance with Order Lifting Stay and Requiring Briefing to Address Lack of Sovereign Immunity" ("Toyota's Brief in Compliance"), pursuant to Rules 62(b), 69(g) and/or 70 (46 C.F.R. §§ 502.62(b), 502.69(g) and/or 502.70).

3. The undersigned counsel received “Toyota’s Brief in Compliance” on December 16th and has been working on PRPA’s response over the holidays, which ended locally on January 7th. Considering the rush of the holidays and the fact that all work is being performed remotely, some details remain for completion. Further, counsel need to discuss the same with PRPA’s general counsel.

4. Counsel believes that a brief three (3) day extension would suffice and could be considered *good cause* in light of the (i) holiday, (ii) remote working and (iii) children’s homeschooling which the undersigned supervises. Considering the aforementioned, PRPA very respectfully requests said term for its attorney to be able to complete PRPA’s response to Toyota’s brief and discuss the same with PRPA’s general counsel.

5. This request for additional time would not cause any undue prejudice or delay, and it is being made in good faith. Further, pursuant to Rule 71(a) (46 C.F.R. §§ 502.71(a)) the undersigned conferred with counsel for Toyota’s counsel today and sought their consent to this extension of time. They kindly stated that they had no objection to it being granted. If granted, said term would expire this Monday, January 18th.

WHEREFORE, PRPA very respectfully requests that the Commission grant a brief three (3) day extension of time (expiring on Monday, January 18th) to file PRPA’s opposition to Toyota’s Brief in Compliance and/or grant any other term and/or relief which it deems proper.

Certificate of Service: I hereby certify that on this same date the foregoing notice was served upon the following attorneys and participants of record: (a) counsel for **Toyota de Puerto Rico Corp.** - Rafael Escalera Rodriguez, Esq. (escalera@reichardescalera.com), Sylvia M. Arizmendi, Esq. (arizmendis@reichardescalera.com), Alan M. Vizcarrondo Santana, Esq. (vizcarrondo@reichardescalera.com), Zarel J. Soto Acaba, Esq. (zsoto@reichardescalera.com);

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(b) counsel for **Crowley Puerto Rico Services, Inc.** – Marc J. Fink, Esq. (mfink@cozen.com), Wayne R. Rohde, Esq. (wrohde@cozen.com) and Matthew Howell, Esq. (mhowell@cozen.com); and (c) counsel for **Oceanic General Agency Inc.** – Henry P. Gonzalez (gonzalez@gdvlegal.com) and Jose E. Alfaro Delgado (joseealfaro@yahoo.com).

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 14th day of January, 2021.

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s/Thomas Trebilcock Horan

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